TOWNSHIP OF LINCOLN
CLARE COUNTY, P.O. BOX 239
LAKE GEORGE, MI 48633

Supervisor, Dennis Zimmerman
Clerk, Carol Majewski
Treasurer, Maggie Carey
Trustee, Jerry Bridges
Trustee, Mike Tobin

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, April 9, 2014

The meeting was called to order by Vice-Chair Swanson at 7:00 pm.

Roll Call:
Present – Vice-Chair Swanson, Secretary Szczepanski, Bridges, Godau, Alternate Engelhardt, Zoning Administrator Carey, Building Inspector Mantei, Recording Secretary Sherrod
Absent – 0
Public – 5

Election of Officers: Szczepanski made a motion to nominate Tom Godau as chair of ZBA, seconded by Swanson. Motion passed unanimously. Szczepanski nominated Swanson as vice-chair of ZBA, Engelhardt seconded. Motion passed unanimously. Swanson nominated Szczepanski as secretary, Bridges seconded. Motion passed unanimously.

Setting of Annual Meeting: Swanson moved to make the second Wednesday of April as the annual meeting to elect officers; Engelhardt seconded. Passed unanimously.

Approval of Minutes:
Regular Meeting minutes of November 13, 2013 – It was moved by Szczepanski and seconded by Engelhardt to accept the minutes as amended. Motion passed Yes (5) No (0). Amended by Carey: should say "four sections of the zoning ordinance"

Purpose: To consider the application of Ken and Mike Coon for a Request for Variance for property #010-324-008-00 and 010-324-009-00 located at 1434 Lake Drive, Lake George, Michigan. Property owners request approval to construct a new residence which would violate the current rear and front set-backs and the overall lot dimension. The notice of this variance was published in the *Clare County Cleaver* in the week of March 27, 2014, in accordance with the township zoning ordinances.

Chair Swanson explained the rules and procedures of the ZBA.

Correspondence: All members of the Board received communications in support of the Coon family and all read those statements.

Petitioner's Statement: Mike Coon, representing himself and his family, stated that they desire to build a cottage on Lake George which will continue a family tradition. They have 6 lots on Lake Drive in the family. They want to join the two properties that are on the lake and then build a cottage which will span the two lots. This will give them a continuous lake frontage. The existing structure is 45 feet from the water's edge. They are asking for the same variance for the new cottage and also to be able to put a 12 foot deck on the lakeside. Also they want to have another 7 foot variance on the rear, as well as another variance which will allow an additional 1% square footage.

Past variances granted in the same neighborhood have created a basis for these requests. They are asking for the same consideration given to their neighbors in the past.

His brother stated as well that this will also center the structure in the two pieces of property, creating a less crowded, more aesthetic effect in that area.

Township Officials' Statements:
Zoning Administrator Carey stated that the reason for his ruling in denial of the initial request was for violations of setback and violations of lot dimension.

Public Comment: Engelhardt stated that the mistakes may have been made in the past and the present board is trying to avoid more of those mistakes in the spirit of preserving the lake and its surroundings.

Mike Coon's mother, Sally, stated that she feels that her family has gone all out to make sure that their property looks nice and will be well cared for. They have the neighbors' support that none of the variances asked for will be objected to.

Engelhardt stated that the board did receive supportive statements from the neighbors.

Mike Coon said that building within the current ordinances and building a multilevel structure would not be aesthetically pleasing.

Gary Szczepanski asked about it being a multi-story from the plans. It is not; it is a single story structure in the plans. They don't have the height clearance to do that.

Jack Coon said that some of the square footage includes wheelchair accessible doorways which make the footage larger.

Szczepanski stated that this looks to be a large lot, but that they could plan a different structure that would fit within the ordinances without needed a variance.

Mike Coon stated that, yes, they could do things differently but due to the age and health condition of their parents, they need to have certain accessibility features built into the new structure. These include a laundry area, golf cart bay, and other handicap accessibility features. This also made a multi-story structure out of the question.

Mr. Richard Coon pointed out that the upper deck could not go out any farther due to the existing well and stone wall.

Mike Coon mentioned other variances approved in the past 10 years in the same neighborhood, specifically 1468 Lake Drive, which is 25 feet from the water's edge. He also cited other dwellings that are nonconforming. We just want to remain consistent with the other properties in the surrounding area.

Mrs. Sally Coon stated that Ken Coon had discussed this with the road commission who said that there was no objection, but Carey said that they are not actually on the roadway.

Mike Coon also mentioned that the family is growing and it is important to be able to expand in the future. Engelhardt noted that they do own the dwelling across the

street from the one in question here tonight. Mrs. Sally Coon explained how that came to be.

Mr. Richard Coon stated that over the many years he has come to this area, he has seen many changes. And this is one that he would really, really like to see.

Jerry Bridges explained how the ZBA are bound by law to consider 5 conditions upon which to make their decision. These were set up by the state law in 1977. Mike Coon states that since then there have been other variances made which do not conform to those 5 conditions. Gary Szczepanski explained that recent cases did vary from the guidelines. Jack Coon asked if it is still possible for the board to make their own decision in spite of the conditions.

So what are the reasons for variances? Bridges explained that certain elements of the property might make it impossible to conform and then the case would go to the board for a hearing. The variance allows for irremediable situations to be dealt with.

Mrs. Sally Coon asked if the way the lake is formed, does that make for a condition which would allow for a variance. Engelhardt stated that the lot size and shape will allow for a change in their plans to conform to the ordinances. Support of neighbors is nice but does not over rule the board's decision.

Jack Coon asked the board to consider the family's frustration in relation to the past decisions that have been made. Mike Coon reiterated that they are attempting to maintain the aesthetics of the area. He asks the board for their consideration in this matter. They are pressed for time and want to break ground this spring.

Szczepanski asks: what would it do if you changed the angle of the structure in relation to the lot? It would not help. They are asking for the same distance from the lake that the current structure is, but shifting it over to the center of the new lot. Carey said that no, the deck is included and would make it an additional 12 feet.

Bridges stated that the way they are doing it, they are actually asking for an additional 17 feet more.

Mr. Richard Coon said he was told that they couldn't do this due to environmental reasons. Carey said that this was the previous zoning administrator.

Carey said that he had to turn it down because he cannot allow any buildings to violate setbacks. This is your appeal to this board and then if denied, you can go to the circuit court.

Carey, when asked what he expects them to build, said that they have ample footage to build on without violating setbacks.

Mr. Richard Coon asked if they are on someone else's property. He was told no. Then what difference does it make?

Discussion about the square footage clarified that the garage and decks are included in the calculations which are looked at for setbacks.

Engelhardt further clarified that the full structure with the garage and decks does exceed the limits. Bridges stated that if the Coons would just redraw the plans they could build the house within the setbacks allowed.

Mrs. Sally Coon asked about the "one wall" rule. This no longer applies. That law was done away with.

Mike Coon stated that they know they are out of compliance, but that they are coming to the board for help, based on past practices.

Jack Coon reinforced that stating that new families have moved in and been granted variances, while their family who has been here since the 1940's is being denied.

Bridges stated that this is the way things are going in the state now except in the non-zoned townships.

Godau stated that we have more and more ordinances to keep the area from becoming overcrowded and unappealing.

Carey asked to be recognized by the chair. He sympathizes but asks the family to consider those owners who have abided by the ordinances in the past and changed their plans to abide within the laws without recourse to variances.

General discussion about how ordinances came into existence and why.

Szczepanski asked about another adjustment to the plan to conform to the setbacks. Mike Coon came up to look it over. They asked Carey for his opinion.

General discussion about the family going back to the architect to redraw the plans so that they conform to the current setbacks. The architect does have the zoning ordinance for the township.

Acting Chair Swanson closed the Public Comment section of the meeting. Bridges moved to close the public hearing. Seconded by Godau. Passed unanimously.

Finding of Fact:
See Final Decision Form

Final Decision:
It was moved by Engelhardt and seconded by Szczepanski to approve or deny the Coons' request. Roll call vote:
Bridges (Denied), Szczepanski (Denied), Godau (Denied), Swanson (Denied), Engelhardt (Denied)

Chair Swanson read the statement that the Coons' have the right to appeal to the circuit court.

Roll Call Vote/Reasons:
See Final Decision Form

Moved by Engelhardt and seconded by Godau to adjourn the meeting at 9:15 pm. Motion passed with all in favor.

Respectfully Submitted,

Gary Szczepanski, Secretary